

The jurisdiction and powers of the SC can be classified into:

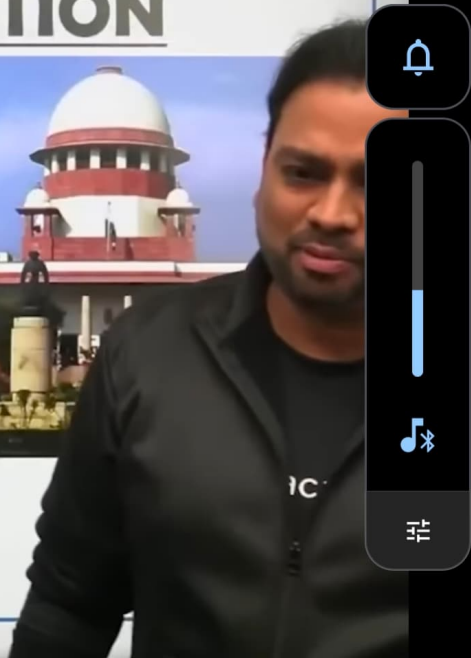
1. Original Jurisdiction
2. Writ Jurisdiction
3. Appellate Jurisdiction
4. Advisory Jurisdiction
5. A Court of Record
6. Power of Judicial Review
7. Constitutional Interpretation
8. Other Powers



ORIGINAL JURISDICTION

As a Federal court, the Supreme Court decides disputes between different units of the Indian Federation. More elaborately, any dispute between:

- a) the Centre and one or more states; or
- b) the Centre and any state or states on one side and one or more states on the other; or
- c) between two or more states.



ORIGINAL JURISDICTION

- In the above federal disputes, the Supreme Court has **EXCLUSIVE ORIGINAL JURISDICTION**.
- **Exclusive:** No other court can decide such disputes
- **Original:** The power to hear such disputes in the first instance, not by the way of appeal.



A dispute arising out of any pre-Constitution treaty, agreement, engagement or other similar instrument.

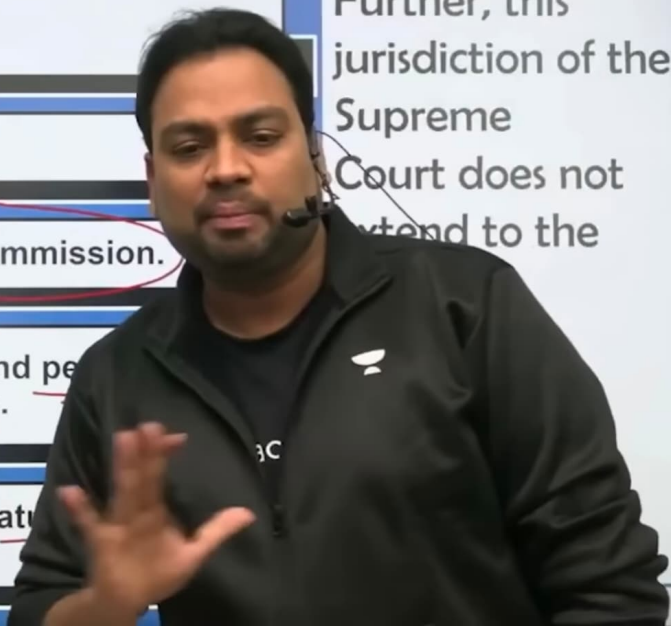
Inter-state water disputes.

Matters referred to the Finance Commission.

Adjustment of certain expenses and payments between the Centre and the states.

Ordinary dispute of Commercial nature between the Centre and the states.

Further, this jurisdiction of the Supreme Court does not extend to the



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Further
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follow

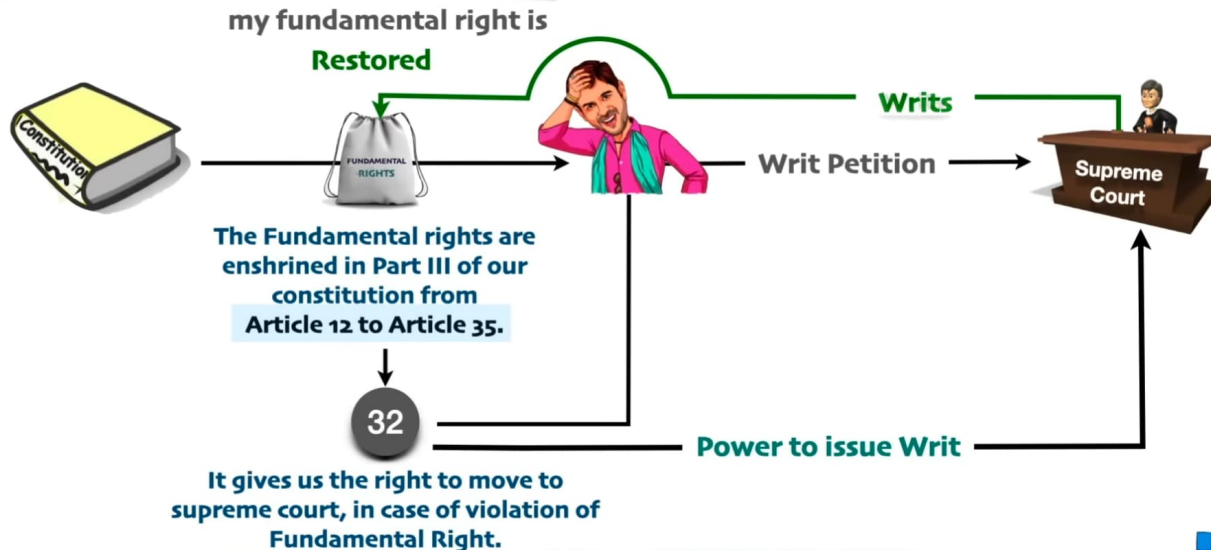
Right to Constitutional Remedies



Right to Constitutional Remedies



Right to Constitutional Remedies



Right to Constitutional Remedies

A writ is a written official order issued by the court in form of warrant, direction, command, order etc.



5 Writs

Article 32 — SC

Article 226

↓
HC

बंदी प्रत्यक्षीकरण (Habeas Corpus)

परमादेश (Mandamus)

प्रतिषेध (Prohibition)

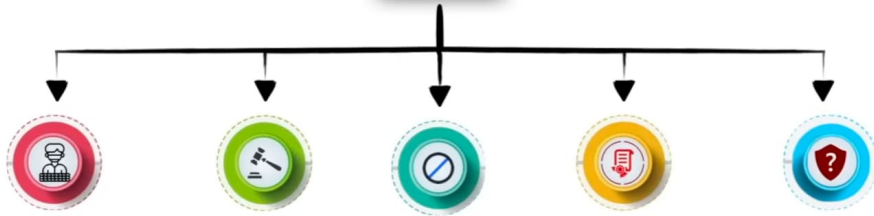
उत्प्रेषण-लेख (Certiorari)

अधिकार पृच्छा (Quo Warranto)



There are 5 types of Writs

Writs



Habeas Corpus

Mandamus

Prohibition

Certiorari

Quo Warranto





Habeas Corpus

Writ of habeas corpus can be issued for **preserving** the **liberty** of a person, who is being **illegally detained**.

You are detained



Common Man

Any person not produced before a Magistrate within 24 hours from arrest is a **violation of his fundamental Right** given in Article 22 - Protection against arrest and detention.





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Illegal Detention



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The **person** who has been illegally detained **can file** an application for **Habeas Corpus** with Supreme Court under Article 32.





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Application for habeas corpus can also be filed by the **mother, father, wife, brother, sister or even friends**) on his behalf





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The **Court** would set the detained **person free**, if the **detention** is found to be **illegal**.





Habeas Corpus

Writ of habeas corpus can be issued for **preserving** the **liberty** of a person, who is being **illegally detained**.



The writ of *habeas corpus* can be issued against both public authorities as well as private individuals



Produce the person before the Court





Mandamus

Writ of **Mandamus** can be issued If a **public official is not doing his duty** and it is **leading to the violation of your Fundamental Right**.





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Public Officer



Right to Freedom

1. Protection of Six Rights

Article 19 guarantees to all citizens the six rights.

- (vi) **Right to practice any profession or to carry on any occupation, trade or business.**





Mandamus

Writ of **Mandamus** can be issued If a **public official is not doing his duty** and it is **leading to the violation of your Fundamental Right.**

I need the License to start my Trading Business



Public Officer

Licensing Authority



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Mandamus

Writ of **Mandamus** can be issued If a **public official is not doing his duty** and it is **leading to the violation** of your



Public Officer

Licensing Authority

No time
Today

I need the
License to start
my Trading
Business

This
is violation of
my FR under
Article 19

Right to Freedom

1. Protection of Six Rights

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(vi) **Right to practice any profession or to carry on any occupation, trade or business.**





Mandamus

Writ of **Mandamus** can be issued If a **public official is not doing his duty** and it is **leading to the violation of your Fundamental Right**.

Okay ! I am working

Public Officer

Licensing Authority



Writ Petition

Mandamus

Supreme Court





Mandamus

'we command'

mandamus can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose.



Writ Petition





Mandamus

'we comma

You can not issue Mandamus against the President & Governors of State

Mandamus can also be issued against any public corporation, an inferior court, a tribunal or any authority for the same purpose.



Writ Petition





Mandamus

'we command'

mandamus can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose.

The writ of *mandamus* cannot be issued (a) against a private individual or body; (b) to enforce departmental instruction that does not possess statutory force; (c) when the duty is discretionary and not mandatory; (d) to enforce a contractual obligation; (e) against the president of India or the state governors; and (f) against the chief justice of a high court acting in judicial capacity.



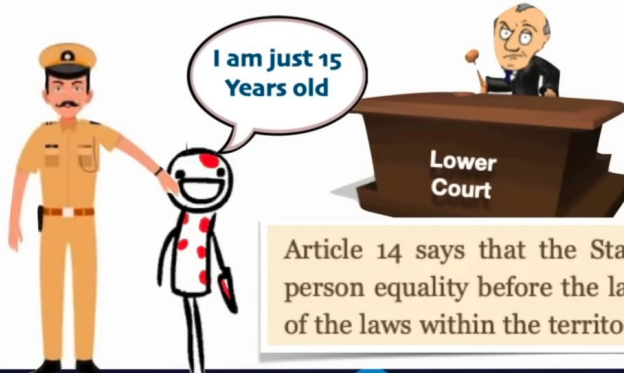
Writ Petition





Prohibition

Writ of prohibition is issued to the court or any tribunal **to bar them from doing something** what they are about to do.



Article 14 says that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. This provision





Prohibition

Literally, it means 'to forbid'.

Writ of prohibition is issued to the court or tribunal **to bar them from doing something** they are about to do.

Writ

Trial should be done in Juvenile Court.

Violating Article 14



I am just 15 Years old



Lower Court



Supreme Court

Article 14 says that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. This provision

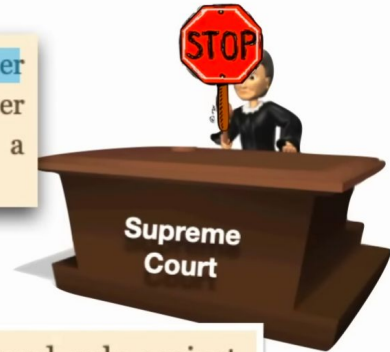




Writ of prohibition is issued to the court or any tribunal **to bar them from doing something** what they are about to do.

Prohibition

Literally, it means 'to forbid'. It is issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess.



The writ of prohibition can be issued only against judicial and quasi-judicial authorities.





Prohibition

In case of prohibition the aggrieved person can move to the Superior court for a writ of prohibition while the proceedings are still going on.



Certiorari

In case of Certiorari the aggrieved person can move to the Superior court for a writ of Certiorari after the Lower court has given the decision.





Certiorari

it means 'to be certified'

Article 14 says that the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. This provision

Writ

Life Imprisonment

VOID

But you are just 15 Years old

Lower Court

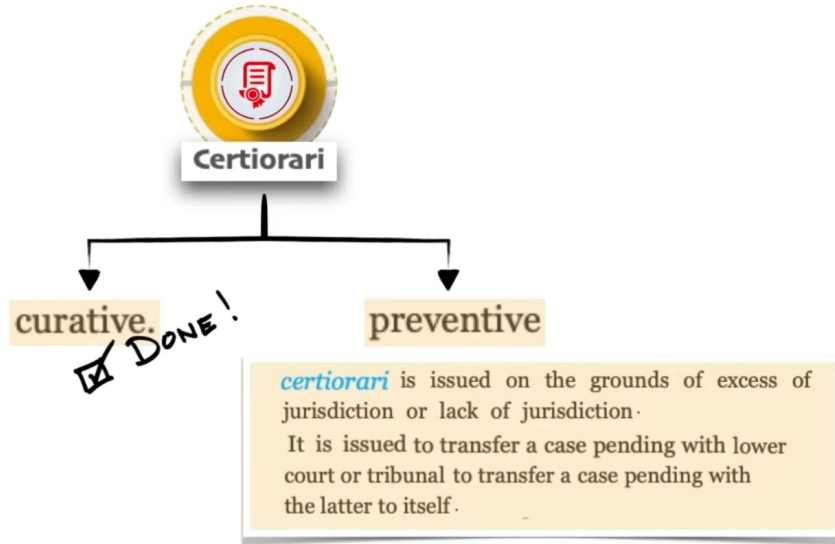
Supreme Court

Lower Court's order is squashed

Violating Article 14

Writ Petition







Prohibition



Certiorari

Like prohibition, *certiorari* is also not available against legislative bodies and private individuals or bodies.



Quo Warranto

Writ of Quo Warranto is issued to enquire into the legality of claim of a person to a public office.

Because of him holding this position my fundamental right is violated



Public Officer

Before making an appointment, the post was not regularly advertised **nor were any applications invited** from persons qualified to hold the position.

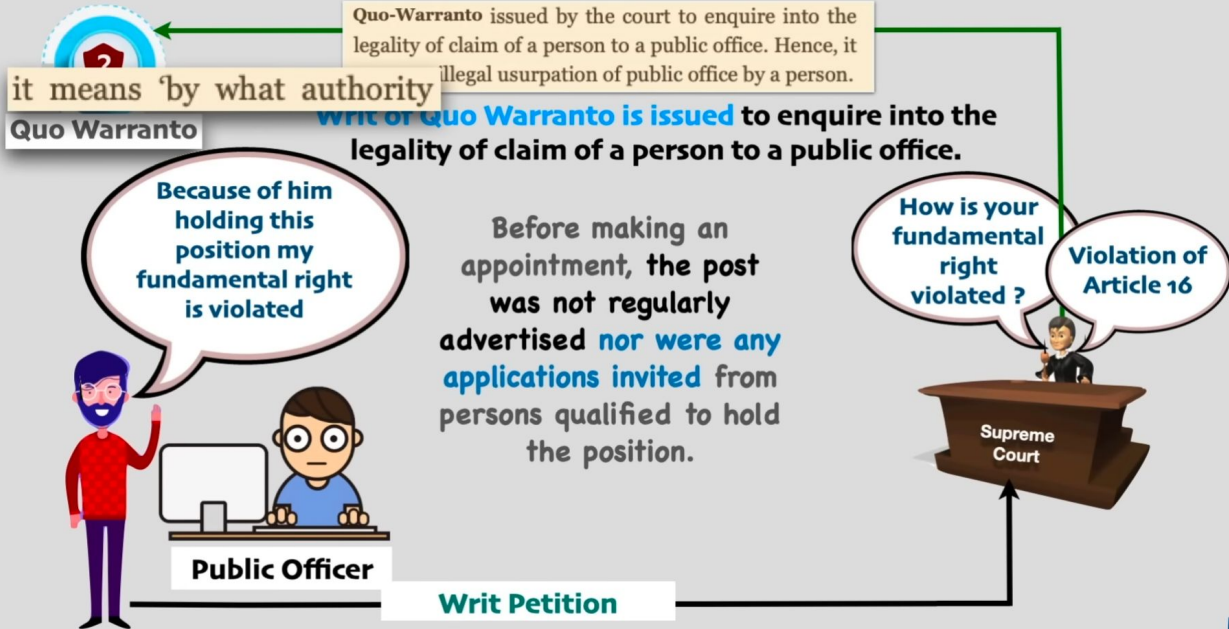
How is your fundamental right violated ?

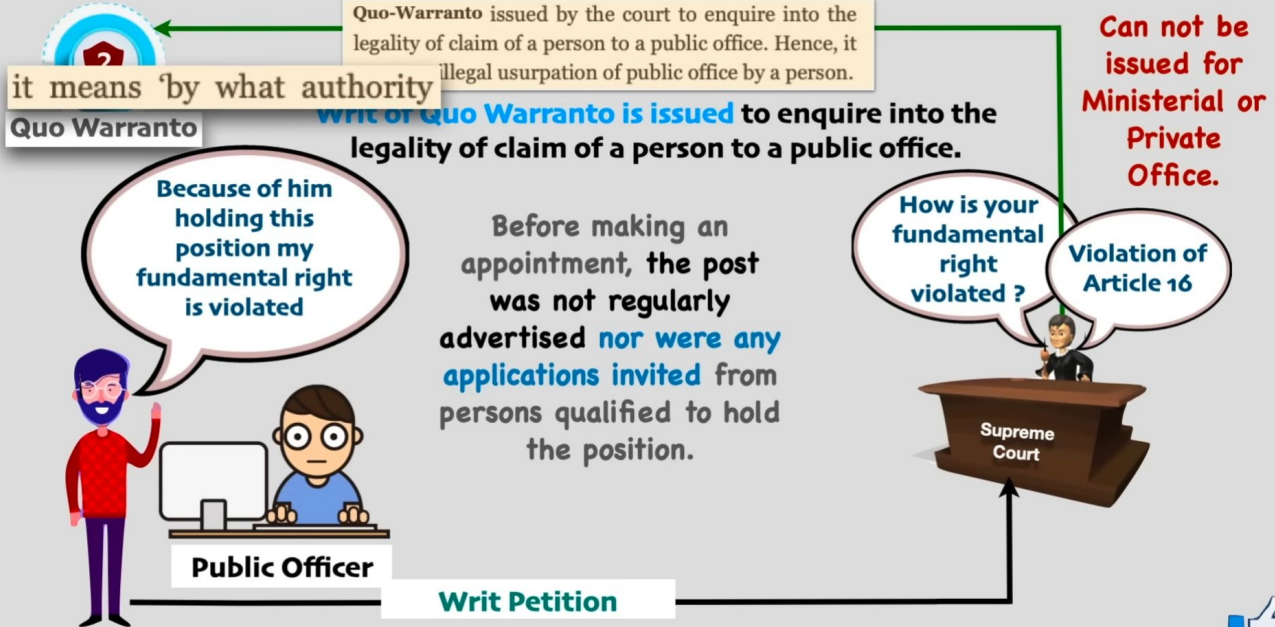


Supreme Court

Writ Petition









Quo Warranto

Unlike the other four writs, this can be sought by any interested person and not necessarily by the aggrieved person.



Public Officer



WRIT JURISDICTION

- In this regard, the Supreme Court has **original jurisdiction** in the sense that an aggrieved citizen can go directly to the Supreme Court, not necessarily by way of appeal.
- However, the writ jurisdiction of the Supreme Court is **not exclusive**. The High Courts are also empowered to issue writs for the enforcement of the Fundamental Rights.



APPELLATE JURISDICTION

- The Supreme Court is primarily **a court of appeal** and hears appeals against the judgements of the lower courts. It enjoys a wide appellate jurisdiction which can be classified under four heads:

1. Appeals in constitutional matters

2. Appeals in civil matters

3. Appeals in criminal matters

4. Appeals by special leave

CCC

1. CONSTITUTIONAL MATTERS

An appeal can be made to the SC against the judgement of a HC if the HC certifies that the case involves a substantial question of law that requires the interpretation of the COI.



2. CIVIL MATTERS

An appeal lies to SC from any judgement of a HC if the HC certifies:

- a) that the case involves a substantial question of law of general importance; and
- b) that the question needs to be decided by the SC



3. CRIMINAL MATTERS

Hears appeals against the judgement in a criminal proceeding of a HC if the HC:

- a) has on appeal reversed an order of acquittal of an accused person & sentenced him to death;
- a) certifies that the case is a fit one for appeal to the SC.



4. By SPECIAL LEAVE

SC is authorised to grant in its discretion special leave to appeal from any judgement in any court or tribunal in the country (except military tribunal and court martials)

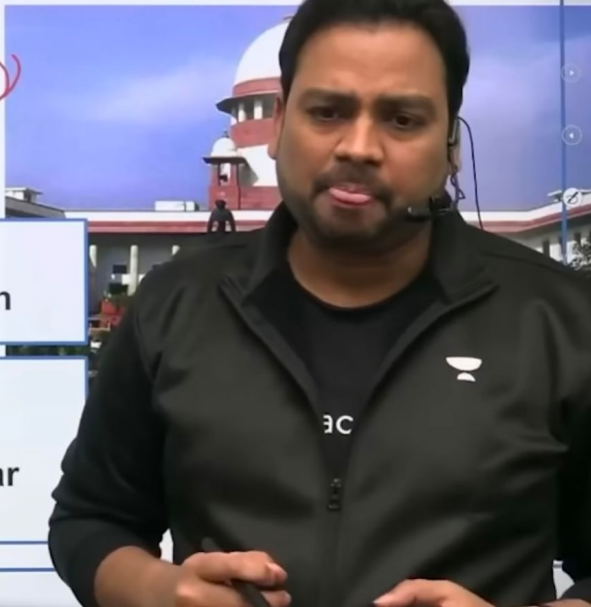


ADVISORY JURISDICTION

- The Constitution under Article 143 authorises the President to seek the opinion of the Supreme Court in the two categories of matters:

- On any question of law or fact of public importance which has arisen or which is likely to arise.

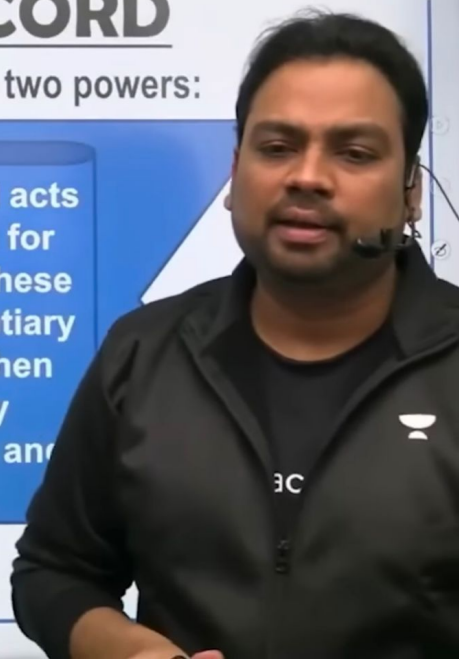
- On any dispute arising out of any pre-constitution treaty, agreement, covenant, engagement other similar instruments.



A COURT OF RECORD

- As a Court of Record, the Supreme Court has two powers:

1. The judgements, proceedings and acts of the Supreme Court are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any court. They are recognised as legal precedents and legal references.



POWER OF JUDICIAL REVIEW

- Judicial review is the power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments.



POWER OF JUDICIAL REVIEW

- On examination, if they are found to be violative of the Constitution, they can be declared as *illegal*, *unconstitutional* and *invalid* (*null and void*) by the Supreme Court. Consequently, they cannot be enforced by the Government.



OTHER POWERS

- Decides the disputes regarding the election of the president and vice-president. SC has the original, exclusive and final authority in this regard.
- Enquires into the conduct and behaviour of the chairman and members of UPSC on a reference made by the President. (Advice binding on the President)



OTHER POWERS

- Has power to review its own judgement or order. SC is a **self-correcting agency**.

